



FIA FORMULA E WORLD CHAMPIONSHIP ROUND 9&10 - MONACO E-PRIX 14 - 17 MAY 2026

Decision no. 41

From: The Stewards
To: DS PENSKE

Date: 8 June 2026
Time: 08:50

The Stewards have received a petition for review in writing from DS PENSKE, requesting the Stewards to review, in accordance with Article 14 of the FIA International Sporting Code, Decision No. 32, issued during Round 10 of the 2026 Monaco E-Prix of the 2025/2026 FIA Formula E World Championship.

Decision No. 32 concerned Car 7, Driver Maximilian Günther, and a breach of Article 16.1 d) of the 2025/2026 FIA Formula E World Championship Sporting Regulations, for causing a collision with Car 16, Driver Sébastien Buemi, at Turn 6. The original Decision imposed a 5 second time penalty and 1 penalty point.

The Petition was submitted in writing by DS PENSKE by e-mail on Monday, 18 May 2026 at 17:17 CET.

The Stewards, having examined the Petition for Review, having summoned and heard the Team Representative of DS PENSKE, Mr Chris Bluett, the Driver of Car 7, Mr Maximilian Günther, as well as the Team Representative of ENVISION RACING, Mr Matt Roberts, during an online hearing held on 27 May 2026 at 15:00 CET. The Driver of Car 16, Mr Sébastien Buemi, who had been given the opportunity to attend the hearing, elected not to do so. The Stewards determine the following.

DECISION 1 - FORMAL ADMISSIBILITY OF THE PETITION

The Stewards first considered whether the Petition satisfies the formal requirements of Article 14 of the FIA International Sporting Code.

The Stewards note that DS PENSKE is the Competitor of Car 7 and is therefore a party directly concerned by Decision No. 32.

The Stewards further note that the Petition concerns a single decision, namely Decision No. 32.

Pursuant to Article 14.4.1 of the FIA International Sporting Code, a Petition for Review must be lodged no later than 96 hours after the end of the Competition concerned. The final classification of the Monaco E-Prix was issued on Sunday, 17 May 2026 at 19:32 CET and the applicable deadline therefore expired on Thursday, 21 May 2026 at 19:32 CET. The Petition was submitted on Monday, 18 May 2026 at 17:17 CET and was therefore submitted within the applicable deadline.

The Stewards also note that the Petition was submitted in writing and identified the alleged elements relied upon by DS PENSKE, namely telemetry, GPS overlays and comparative video material relating to the incident between Car 7 and Car 16 at Turn 6.

The required deposit pursuant to Article 14.4.3 of the FIA International Sporting Code was received, as confirmed by the Stewards' Secretary.

The Stewards therefore determine that the formal requirements under Article 14 of the FIA International Sporting Code have been satisfied.

Decision 1: The Petition for Review is admissible.

This Decision 1 is subject to appeal in accordance with the applicable provisions of the FIA International Sporting Code.

DECISION 2 - EXISTENCE OF A SIGNIFICANT AND RELEVANT NEW ELEMENT WHICH WAS UNAVAILABLE

Having determined that the Petition is formally admissible, the Stewards then considered whether the Petition identifies a significant and relevant new element which was unavailable to the Stewards at the time Decision No. 32 was taken, within the meaning of Article 14.1.1 of the FIA International Sporting Code. For the purposes of this assessment, the Stewards consider an element to be significant if it would have been capable of materially affecting the original Decision, including both the finding of breach and the penalty imposed.

As Decision No. 32 was an in-race decision and no hearing was conducted before that Decision was taken, the relevant test under Article 14.1.1 of the FIA International Sporting Code is whether the alleged new element was unavailable to the Stewards at the time the original Decision was taken.

In Decision No. 32, the Stewards found that Car 7 attempted to overtake Car 16 on the inside at Turn 6 and made contact with Car 16 near the apex of the corner. The Stewards further found that, while Car 7 may have reached the level of the mirror of Car 16 at the apex itself, Car 7 had not established the required overlap sufficiently prior to the apex. Applying the Driving Standards Guidelines as the framework for assessing the incident, the Stewards determined that Car 7 had not earned the right to the corner in the manner required for an overtaking manoeuvre on the inside of a corner.

In the same Decision, the Stewards expressly acknowledged that Car 16 adopted a tighter line towards the apex than the normal racing line. However, notwithstanding this, the Stewards determined that the predominant responsibility for the collision still rested with Car 7, and therefore that Car 7 had caused the collision in breach of Article 16.1 d) of the 2025/2026 FIA Formula E World Championship Sporting Regulations. Accordingly, the Stewards imposed a 5 second time penalty and 1 penalty point.

During the hearing, the Team Representative and the Driver of Car 7 explained that the telemetry and GPS overlays submitted by DS PENSKE showed that Car 7 took a consistent line through Turn 6, comparable to the Driver's line on other laps. They further submitted that Car 7 was not making a late lunge on the inside, but was seeking to maintain position while driving as efficiently as possible, and had to react to the line taken by Car 16. DS PENSKE also submitted that Car 16 took an inconsistent and tighter line towards the apex on the incident lap, and that this was the cause of the contact.

The Stewards considered the GPS overlays and telemetry submitted by DS PENSKE. The Stewards accept that the GPS overlays were new, and that the telemetry may be regarded as 'new' in the sense that it was presented in greater detail and with further explanation in the context of the Petition for Review. The Stewards also accept that they are relevant, as they relate to the respective lines and positions of Car 7 and Car 16 at Turn 6. However, the Stewards do not consider these elements to be significant within the meaning of Article 14.1.1 of the FIA International Sporting Code. The material presented by DS PENSKE further illustrates a point which had already been expressly acknowledged and weighed by the Stewards in Decision No. 32, namely that Car 16 adopted a tighter line towards the apex than the normal racing line. It does not materially alter the central basis of the original Decision: that, applying the Driving Standards Guidelines as the framework for assessing the incident, Car 7, as the following car, had not established the required overlap sufficiently prior to the apex and was therefore required to take appropriate action to avoid contact with Car 16. The later presentation of additional data concerning the respective lines of the cars therefore does not change the Stewards' assessment that Car 7 caused the collision in breach of Article 16.1 d), nor that the predominant responsibility for the collision rested with Car 7.

The Stewards also considered the Driver's explanation given during the hearing. The Stewards accept that this explanation was new and was unavailable to them at the time Decision No. 32 was taken. The Stewards also accept that it is relevant, in the sense that it explains the Driver's view of the incident and why he positioned Car 7 on the inside. However, the Stewards do not consider it to be significant. Even if accepted in full, the Driver's explanation does not materially alter the Stewards' assessment under the Driving Standards Guidelines. Whatever the Driver's intention or purpose in positioning Car 7 on the inside, the central basis of the original Decision remains that, applying the Driving Standards Guidelines as the framework for assessing the incident, Car 7, as the following car, had not established the required overlap sufficiently prior to the apex and was therefore required to take appropriate action to avoid contact with Car 16. The Driver's explanation does not materially affect the finding that Car 7 caused the collision in breach of Article 16.1 d).

The Stewards further considered the comparative video material referred to by DS PENSKE, including examples of other cars negotiating Turn 6 side-by-side. The Stewards do not consider this material to be relevant for the purposes of Article

14.1.1 of the FIA International Sporting Code. The material concerns other situations, involving different cars, different relative positions and different dynamics. It does not provide any material additional element in relation to the specific incident between Car 7 and Car 16. In any event, even if considered relevant as general context, the Stewards do not consider it to be significant, as it would not have been capable of materially affecting either the finding of breach or the penalty imposed in Decision No. 32.

The Stewards further note that the elements relied upon by DS PENSKE would not have materially affected either the finding of breach or the penalty imposed. In Decision No. 32, the Stewards had already taken into account that Car 16 adopted a tighter line towards the apex than the normal racing line, and for that reason determined that the predominant, rather than the whole, responsibility rested with Car 7. The 5 second time penalty and 1 penalty point imposed reflected that assessment. The Petition largely seeks to reargue the incident and to present, in greater detail, matters which had already been considered by the Stewards when Decision No. 32 was taken.

The Stewards therefore determine that none of the elements presented by DS PENSKE, whether considered individually or collectively, satisfies all the cumulative requirements of Article 14.1.1 of the FIA International Sporting Code. None of those elements materially affects the basis upon which Decision No. 32 was taken nor would any of them have materially affected the penalty imposed. Accordingly, no significant and relevant new element which was unavailable to the Stewards at the time of Decision No. 32 has been established.

Decision 2: There is no significant and relevant new element which was unavailable to the Stewards at the time Decision No. 32 was taken. Accordingly, the Stewards reject the Petition for Review. As the Petition for Review is rejected, the deposit is retained.

Competitors are reminded that, in accordance with Article 14.3 of the FIA International Sporting Code, Decision 2 as to whether or not a significant and relevant new element exists is not subject to appeal.

Mathieu Remmerie
Chairman of the Panel

Michael Schwägerl
International Steward

Jean-François Calmes
National Steward